

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Moriba Geoffroy	Team: Squad #03	CCRB Case #: 202205470	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 07/18/2022 6:50 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/18/2024	Precinct: 120
Date/Time CV Reported Tue, 08/16/2022 6:00 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Fri, 08/19/2022 11:26 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Genaro Barreiro	00308	950050	WARRSEC
2. DT3 John Wilkinson	02497	962909	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT2 Arthur Leahy	01783	940367	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro damaged § 87(2)(b)'s property.	A . Within NYPD Guidelines
B . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro entered § 87(2)(b) in Staten Island.	B . Within NYPD Guidelines
C . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro searched § 87(2)(b) in Staten Island.	C . Within NYPD Guidelines
D . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro drew his gun.	D . Within NYPD Guidelines
E . DT3 Genaro Barreiro	Force: Detective Genaro Barreiro used physical force against § 87(2)(b)	E . Unable to Determine
F . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro threatened to arrest § 87(2)(b)	F . Unable to Determine
G . DT3 John Wilkinson	Abuse: Detective John Wilkinson failed to provide § 87(2)(b) with a business card.	G . Unable to Determine

Case Summary

On August 16th, 2022, § 87(2)(b) filed this complaint, in person, at an NYPD stationhouse. The complaint was received by the CCRB from IAB.

On July 18th, 2022, at approximately 6:50 a.m., § 87(2)(b) was awoken by a loud banging at her door at § 87(2)(b) Apt § 87(2)(b) in Staten Island. § 87(2)(b) went downstairs and saw that her door was damaged (**Allegation A: Abuse of Authority; Within NYPD Guidelines**). Detective Ganero Barreiro, Detective John Wilkinson, and Detective Arthur Leahy, all from the Warrant Section, entered (**Allegation B: Abuse of Authority; Within NYPD Guidelines**) and searched her apartment (**Allegation C: Abuse of Authority; Within NYPD Guidelines**). Det. Barreiro drew his gun (**Allegation D: Abuse of Authority; Within NYPD Guidelines**), pushed § 87(2)(b) (**Allegation E: Force; Unable to Determine**), and threatened to arrest her (**Allegation F: Abuse of Authority; Unable to Determine**). § 87(2)(b) asked for everyone's business cards and Det. Wilkinson denied her request (**Allegation G: Abuse of Authority; Unable to Determine**). § 87(2)(b), § 87(2)(b)'s daughter, was arrested, and no summons resulted from this incident.

There is no known video evidence of this incident. Warrant Squad officers are not assigned body-worn cameras (BWC).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Genaro Barreiro damaged § 87(2)(b)'s property.

Allegation (B) Abuse of Authority: Detective Genaro Barreiro entered § 87(2)(b) Apt § 87(2)(b) in Staten Island.

Allegation (C) Abuse of Authority: Detective Genaro Barreiro searched § 87(2)(b) Apt § 87(2)(b) in Staten Island.

Allegation (D) Abuse of Authority: Detective Genaro Barreiro drew his gun.

Allegation (E) Force: Detective Genaro Barreiro used physical force against § 87(2)(b).

Allegation (F) Abuse of Authority: Detective Genaro Barreiro threatened to arrest § 87(2)(b).

§ 87(2)(b) testified that she was sleeping in her apartment at § 87(2)(b) Apt § 87(2)(b) in Staten Island. Her apartment was made up of six rooms. Upon entry, on the right was the living room and to the left was the kitchen. Next to the kitchen was the bathroom and to the right was § 87(2)(b)'s bedroom. Further down the hallway were two other bedrooms, one on the right and the other at the end of the hallway. The only people who were in the apartment at the time were her and her daughter, § 87(2)(b) who was sleeping in her room. § 87(2)(b) was awoken by the sound of loud banging at her apartment door. She went to the front door and asked the officers why they were kicking her door. They said that this was the warrant squad and to open the door. § 87(2)(b) screamed at the officers to wait, saying that she would open the door. When she attempted to open the door, it was too damaged from the kicking, and she was unable to open it. She told the officers to continue kicking open the door since she could not open it due to it already being damaged. When the officers opened the door, she saw them holding a metal ram which she believed was used to break open the door. There were different dents around the door, the doorknob was broken, the door panel was cracked on the inside, and the top lock was broken. An officer, who the investigation determined was Det. Barreiro, entered the apartment with his gun drawn. § 87(2)(b) saw other officers standing at the entrance. Det. Barreiro pointed his gun straight ahead,

into the living room. § 87(2)(b) was standing near the bedroom door when she stopped Det. Barreiro and said that she wanted to see a warrant. Det. Barreiro had the warrant and attempted to show her, but she was not given a copy. Det. Barreiro became aggressive and shoved § 87(2)(b) using his forearm. § 87(2)(b) shoved Det. Barreiro and told him not to touch her. § 87(2)(b) could not recall when Det. Barreiro holstered his weapon but remembered that it was holstered when he shoved her. Det. Barreiro said he had a warrant and threatened § 87(2)(b) saying that she would be arrested. The rest of the officers entered the apartment and asked § 87(2)(b) if her daughter, § 87(2)(b) was home. § 87(2)(b) told the officers that § 87(2)(b) was home. The officers went into different rooms and began searching her apartment. § 87(2)(b) went into her room to grab her phone, while the officers searched her closet. Det. Barreiro went straight to the back with two unidentified officers. § 87(2)(b) could not see what the officers at the end of the hallway were doing. The officers came from the back with her daughter and § 87(2)(b) was still asking to see a copy of the warrant. Det. Barreiro said they were knocking on the door for a while, but no one answered. § 87(2)(b) said she came downstairs when they were kicking the door. Det. Barreiro explained that the warrant was for her daughter not showing up in court for a suspected robbery charge. § 87(2)(b) recalled seeing the bottom right corner of the paper, which had a picture of her daughter with her head shaved and the word 'warrant.' As the officers were leaving, § 87(2)(b) started to record everyone who was inside of her apartment, using her cellphone [BR 1].

§ 87(2)(b) was unavailable to the investigation and therefore no statement was obtained from her (See IAs for contact attempts).

A City Involved Accident Report was filed by Det. Barreiro for damage done to a door at § 87(2)(b) Apt. § 87(2)(b), Staten Island, New York. The comments showed that there was an active warrant for the subject present at the location [BR 2].

A bench warrant was issued for § 87(2)(b) on § 87(2)(b) which listed her address being § 87(2)(b) Staten Island, New York. She was charged § 87(2)(b) [REDACTED]

A Clear search was conducted on November 1st, 2022, for § 87(2)(b) which indicated that her most recent address was § 87(2)(b) Apt. § 87(2)(b), Staten Island, New York [BR 4].

A DD5 report was completed on July 18th, 2022, which showed the completed apprehension of § 87(2)(b) from § 87(2)(b) Apt. § 87(2)(b), Staten Island, New York. The report was completed by Det. Barreiro. Details of the report showed at approximately 6:50 a.m., Det. Barreiro visited the location. He knocked on the door and listened to a female voice calling the subject, § 87(2)(b). After identifying himself, they refused to open the door after multiple attempts of trying to contact the occupants at the location. Det. Barreiro entered the location, where the subject's mother, § 87(2)(b) attempted to physically block him from going down the hallway. § 87(2)(b) was found hiding under the blanket in a bedroom. At 7:00 a.m., § 87(2)(b) was apprehended and taken to Staten Island Criminal Court [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]. At 1:00 p.m., Det. Barreiro filed a City Involved Report and gave the subject's mother a contact card at the location [BR 5].

Det. Barreiro testified that at approximately 6:50 a.m. on July 18th, 2022, he went to § 87(2)(b) Apt. § 87(2)(b) in Staten Island, to arrest § 87(2)(b). He went to the location with Det. Wilkinson and Det. Leahy. Det. Barreiro conducted various searches for § 87(2)(b) which showed prior investigations and arrests of her being apprehended at this location. When he arrived at the location, he listened to hear what was happening inside of the apartment. He heard the

mother, § 87(2)(b) call her daughter, § 87(2)(b) and she replied, “Yes mom.” He knocked on the door and waited. § 87(2)(b) came to the door, he identified himself as an officer, and said that they came for § 87(2)(b). § 87(2)(b) asked, “For what,” and he explained to her that they had a warrant. Det. Barreiro asked § 87(2)(b) to tell § 87(2)(b) to step outside, and she said no. He continued to convince § 87(2)(b) to open the door but she refused. Det. Barreiro called his supervisor, Sergeant Angelo Pirozzi, and explained the situation. He told Sgt. Pirozzi they had the subject, that she was inside of the apartment, and the mother refused to open the door. Sgt. Pirozzi told him to take the door. The officers told § 87(2)(b) to stand back because they were going to take the door. They used a ram to break down the door, but Det. Barreiro could not recall who used the ram. The lock was damaged when they forced open the door. Det. Barreiro entered the apartment first and his partners followed. He entered with his gun drawn because inside of the apartment was dark and he did not know if there was any threat present. He pointed his gun at § 87(2)(b) who was standing in a dark hallway. Det. Barreiro did not know if she had anything in her hands. He told § 87(2)(b) to put her hands up and when she did, he pointed his gun down, away from her. He moved § 87(2)(b) to the side using his left hand and pointed his gun up again to clear the other rooms. Det. Barreiro said he did not push § 87(2)(b). He did not recall giving her any instructions to move out of the way before making physical contact with her. § 87(2)(b) did not make any physical contact with the walls and did not complain about being pushed. Det. Barreiro went down the hallway and to the right, where there was a bedroom. He entered and cleared the bedroom and saw that there was a person underneath the blanket. Det. Barreiro did not recall entering any other room in the residence. He took off the blanket, saw § 87(2)(b) and told her to get up. He explained that she had a warrant, picked her up, placed handcuffs on her wrist, and brought her out of the apartment. When they were walking § 87(2)(b) through the hallway and out of the apartment, § 87(2)(b) said, “Let me have a warrant.” Det. Barreiro said, “I cannot give you a warrant, but I can show you the warrant.” § 87(2)(b) had a phone in her hand, but he could not tell if she was recording or taking a picture. He proceeded to show § 87(2)(b) the warrant by placing it on the wall so that she could take a picture or a video. § 87(2)(b)s apartment was not searched other than the bedroom he entered. He did not recall seeing any other officer search the residence [BR 6].

§ 87(2)(g)

Det. Leahy testified that when they entered the location, he stood at the door. He did not see § 87(2)(b) trying to physically stop Det. Barreiro’s actions or if she was blocking the way with her body. Det. Leahy did not enter any rooms and stayed at the door. He did not recall Det. Barreiro threatening to arrest § 87(2)(b) nor did he recall Det. Barreiro using any type of force against her [BR 7]. Det. Wilkinson testified that he opened the door using a steel ram. He did not recall seeing Det. Barreiro make any physical contact with § 87(2)(b) or her standing in front of them in the hallway. He escorted § 87(2)(b) out of the apartment and stood at the elevator, which was 30-40 feet away from the apartment. Det. Barreiro and Det. Leahy stayed behind and were speaking with § 87(2)(b). Det. Wilkinson could not see what was happening or hear the conversation. While in the apartment, Det. Wilkinson did not recall him or any other officer entering any other rooms. Det. Wilkinson could not recall if Det. Barreiro threatened to arrest § 87(2)(b) or him using physical force against her [BR 8].

New York Criminal Procedure Law 120.80 states that in order to execute a warrant of arrest, officers may, enter any premises in which they reasonably believe the defendant to be present unless the premises in which the officer reasonably believes the defendant to be present is the dwelling of a third party who is not the subject of the arrest warrant. If the officer is authorized

to enter premises without giving notice of his authority and purpose, or if after giving such notice he is not admitted, he may enter such premises, and by a breaking if necessary [BR 9].

According to Patrol Guide Procedure 221-01, the decision to display or draw a firearm should be based on an articulate belief that the potential for serious physical injury is present [BR 10].

It is undisputed that Det. Barreiro, Det. Leahy, and Det. Wilkinson all entered § 87(2)(b)'s apartment in search of § 87(2)(b) who was the subject of a bench warrant.

§ 87(2)(g)
§ 87(2)(g). The investigation also conducted a CLEAR search which indicated that § 87(2)(b) resided at the location. § 87(2)(b) testified that the officers damaged her door and upon entry, searched her apartment. § 87(2)(g)

§ 87(2)(g)
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§ 87(2)(g) it is recommended that **Allegations A-C** be closed as **Within NYPD Guidelines**.

Det. Barreiro admitted that he drew his weapon when he entered the apartment because it was dark, and he did not know if there was any threat present. § 87(2)(g)

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§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation D** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation E-F** be closed as **Unable to Determine**.

Allegation (G) Abuse of Authority: Detective John Wilkinson failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that she asked for everyone's business card and Det. Barreiro said she would just be given his card. The other officers did not respond to § 87(2)(b)'s request. Det. Barreiro began writing his information on a card and explained to § 87(2)(b) that they were taking her daughter to court, and she would be home shortly. Det. Barreiro tried to give § 87(2)(b) his card by pushing it on her arm, which was folded, and she said, "Do not touch me." § 87(2)(b) did not take the card and it fell to the floor. Det. Leahy gave § 87(2)(b) his business card [BR 1].

Det. Wilkinson testified that § 87(2)(b) did not ask him for a business card. He did not offer § 87(2)(b) any business cards, as he was standing at the elevator with § 87(2)(b).

Det. Wilkinson could not recall there being any conversation about business cards while he was in the apartment [BR 8].

Det. Barreiro testified that he gave § 87(2)(b) a business card but could not recall if she asked for his business card or any other officers. § 87(2)(b) grabbed the business card and threw it on the floor. Det. Leahy gave § 87(2)(b) a business card but he could not recall if she dropped it on the floor or took the card [BR 6].

Det. Leahy testified that as they were leaving the location, Det. Barreiro gave § 87(2)(b) a business card. § 87(2)(b) took the business card, threw it on the floor, and said she did not want it. § 87(2)(b) asked Det. Leahy for a business card, and he wrote his number on the card and gave it to her. Det. Wilkinson was 10-15 feet ahead of them, walking towards the elevator and was unable to give § 87(2)(b) a business card [BR 7].

The movement log from the Warrant Squad shows that at 6:00 a.m., Det. Barreiro, Det. Leahy, and Det. Wilkinson, were the only officers who went to the location listed as 691 Bay Street [BR 11].

NYPD Administrative Guide 304-11 states that officers are required to offer a business card upon the conclusion of law enforcement activities, except in cases when a summons is issued, or an arrest is made, or exigent circumstances are present (i.e., physical resistance, flight, or other factors make such procedure impractical) [BR 12].

NYC Administrative Guide 14-174 states an officer shall offer a business card to any person requesting identifying information [BR 13].

§ 87(2)(g)

it is recommended that **Allegations G** be closed as *Unable to Determine*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [BR 14].
- Det. Wilkinson has been a member of service for 11 years and has been a subject in three other CCRB complaints and 10 allegations, none of which were substantiated. § 87(2)(g)
- Det. Barreiro has been a member of service for 11 years and has been a subject in 20 other CCRB complaints and 40 allegations, of which three were substantiated.:
 - 202103594 involved substantiated allegations of entry of premises and search of premises against Det. Barreiro. The Board recommended Command Discipline B for both allegations and the NYPD imposed no penalty.
 - 202105454 involved a substantiated allegation of entry of premises against Det. Barreiro. The Board recommended Formalized Training and the NYPD has not yet imposed discipline. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 17th, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident **[BR 15]**.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: _____ 3 _____

Investigator:	_____ Moriba Geoffroy Signature	_____ Inv. Moriba Geoffroy Print Title & Name	_____ 4/5/2023 Date
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Squad Leader:	_____ Rolando Vasquez Signature	_____ IM Rolando Vasquez Print Title & Name	_____ 4/5/2023 Date
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